# TITLE COMMITMENT

Union Market Lofts | Boston, MA

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| **Commitment No.** | TC-9999 |
| **Property** | Union Market Lofts, 8851 Church Boulevard, Boston, MA 81887 |
| **Proposed Insured** | Juniper Peak Real Estate Fund |
| **Effective Date** | June 30, 2018 |

**1. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**2. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**3. Schedule B-I - Requirements.** Pay the full consideration to or for the account of the grantors. Record the deed from Lakeside Family Partnership to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**4. Schedule B-II - Exception.** Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

**5. Schedule B-II - Exception.** Easement in favor of the local electric utility recorded in Book 43, Page 43, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**6. Schedule B-II - Exception.** Declaration of covenants, conditions and restrictions recorded as Instrument No. 242424, as amended. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**7. Schedule B-II - Exception.** Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. Time is of the essence with respect to each and every provision of this instrument.

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**8. Schedule B-II - Exception.** Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**9. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**10. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**11. Schedule B-I - Requirements.** Pay the full consideration to or for the account of the grantors. Record the deed from Lakeside Family Partnership to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**12. Schedule B-II - Exception.** Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**13. Schedule B-II - Exception.** Easement in favor of the local electric utility recorded in Book 20, Page 20, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

**14. Schedule B-II - Exception.** Declaration of covenants, conditions and restrictions recorded as Instrument No. 383838, as amended. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

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**15. Schedule B-II - Exception.** Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**16. Schedule B-II - Exception.** Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

**17. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. Time is of the essence with respect to each and every provision of this instrument.

**18. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**19. Schedule B-I - Requirements.** Pay the full consideration to or for the account of the grantors. Record the deed from Lakeside Family Partnership to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**20. Schedule B-II - Exception.** Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**21. Schedule B-II - Exception.** Easement in favor of the local electric utility recorded in Book 35, Page 35, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

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**22. Schedule B-II - Exception.** Declaration of covenants, conditions and restrictions recorded as Instrument No. 121212, as amended. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**23. Schedule B-II - Exception.** Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**24. Schedule B-II - Exception.** Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**25. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. Time is of the essence with respect to each and every provision of this instrument.

**26. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**27. Schedule B-I - Requirements.** Pay the full consideration to or for the account of the grantors. Record the deed from Lakeside Family Partnership to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**28. Schedule B-II - Exception.** Taxes and assessments for the year 2024 and subsequent years, a lien not yet due and payable. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. Time is of the essence with respect to each and every provision of this instrument.

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**29. Schedule B-II - Exception.** Easement in favor of the local electric utility recorded in Book 43, Page 43, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

**30. Schedule B-II - Exception.** Declaration of covenants, conditions and restrictions recorded as Instrument No. 151515, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**31. Schedule B-II - Exception.** Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**32. Schedule B-II - Exception.** Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**33. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

**34. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

**35. Schedule B-I - Requirements.** Pay the full consideration to or for the account of the grantors. Record the deed from Lakeside Family Partnership to Juniper Peak Real Estate Fund. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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**36. Schedule B-II - Exception.** Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**37. Schedule B-II - Exception.** Easement in favor of the local electric utility recorded in Book 29, Page 29, Official Records of the county. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**38. Schedule B-II - Exception.** Declaration of covenants, conditions and restrictions recorded as Instrument No. 454545, as amended. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

**39. Schedule B-II - Exception.** Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA.

**40. Schedule B-II - Exception.** Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**41. Schedule A - Commitment.** Effective Date: June 30, 2018. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Juniper Peak Real Estate Fund. Amount of Insurance: $40,040,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**42. Schedule A - Estate or Interest.** Fee simple estate in the land described below is vested in Lakeside Family Partnership. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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# Disclaimer and Confidentiality

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. This document relates solely to Union Market Lofts and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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